

24BBCV00244 24BBCV00244

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24BBCV00244 Hearing Date: September 11, 2026 Dept: A

TENTATIVE RULING

SEPTEMBER 11, 2026

MOTION FOR RECONSIDERATION

Los

Angeles Superior Court Case # 24BBCV00244

MP: Defendant

Gary English

RP: Plaintiff

Judy Choi

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at

BurDeptA@LACourt.ca.gov or by telephone at (818) 260-8412.

ALLEGATIONS:

Judy Choi

("Plaintiff") alleges she contracted with Gary English and Gary English Construction ("Defendants") to build an Alternative Dwelling Unit ("ADU") on her property. Plaintiff alleges that despite payment made to Defendants, the project remained unfinished and much of the work that was completed was defective.

The

Complaint, filed January 29, 2024, alleges: (1) Breach of Contract; (2) Fraud; (3) Unfair Business Practices; (4) Accounting; and (5) Rescission.

On June 11,

2024, Defendants filed a cross-complaint against Plaintiff for: (1) Breach of Contract; (2) Quantum Meruit; and (3) Reasonable Value of Work, Labor, Services, and Materials Furnished.

RELEVANT BACKGROUND AND MOTION ON CALENDAR:

On April 24, 2026, the Court granted Plaintiff's unopposed motion to compel Defendant's initial responses to Form Interrogatories ("FROG"), set two and motion for order deeming Requests for Admissions ("RFA"), set two, admitted; ordered responses to the FROG within 30 days; and imposed \$2,120 in sanctions against Defendant and his counsel of record payable within 30 days.

On May 6, 2026, Defendant filed a Motion for Reconsideration of the Court Order Deeming RFAs Admitted and/or Alternative Motion for Relief Under C.C.P. §§ 473(b) and 2033.300. On August 26, 2026, Plaintiff filed an opposition. On September 3, 2026, Defendant filed a reply.

LEGAL STANDARD:

C.C.P. § 1008(a) states: "(a) When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by

the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown."

C.C.P. § 2033.300 states:

(a) A party may withdraw or amend an admission made in response to a request for admission only on leave of court granted after notice to all parties.

(b) The court may permit withdrawal or amendment of an admission only if it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits.

(c) The court may impose conditions on the granting of the motion that are just, including, but not limited to, the following:

(1) An order that the party who obtained the admission be permitted to pursue additional discovery related to the matter involved in the withdrawn or amended admission.

(2) An order that the costs of any additional discovery be borne in whole or in part by the party withdrawing or amending the admission.

(C.C.P. § 2033.300.)

The mandatory provision of C.C.P. § 473(b) states:

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn

affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.

(C.C.P. § 473(b).)

ANALYSIS:

A.

Discussion of Substantive Merits of
the Motion

Defendant moves for reconsideration, arguing that he served verified, code-complaint responses to the RFA on March 17, 2026, over a month prior to the hearing on the underlying motion to deem the RFAs admitted.

In support of the motion, defense counsel Nick M. Campbell provides his declaration. Mr. Campbell states that on March 17, 2026, he served via email Defendant's RFA, set two, responses, without objection, to Plaintiff's counsel Eugene "Chip" Matthews, at his correct email address, which he used in prior correspondence and which appears on his pleadings. (Campbell Decl., ¶3.) Exhibit A includes a March 17, 2026 email from Mr. Campbell to Mr. Matthews attaching Defendant's RFA and FROG responses were attached. (Id., ¶3, Ex.

A.) Exhibit B includes the RFA responses, signed by counsel on January 19, 2026 and verified by Defendant that same day. (Id., ¶3, Ex. B.) Mr. Campbell states that the March 17, 2026 email did not generate any bounce-back, delivery failure, or undeliverable notice; it was sent with a "high importance" designation; and he had invited Plaintiff's counsel to meet and confer regarding the pending discovery motions but did not receive a response. (Id., ¶3.) At the April 24, 2026 hearing, Plaintiff's counsel represented to the Court that no responses had been

received. (Id., ¶4.) Mr. Campbell states that after the hearing, he reviewed his March 17, 2026 email and confirmed the responses had been sent and he forwarded the same to Plaintiff's counsel. (Id., ¶4, Ex. C.) On April 28, 2026, Mr. Campbell again emailed Plaintiff's counsel by replying directly to a prior email from him, informing Mr. Matthews about the March 17, 2026 email responses and asking if he would be willing to stipulate to set aside the order deeming the RFAs admitted. (Id., ¶5, Ex. D.) He states that he has not received any response from Plaintiff's counsel. (Id., ¶6.)

Mr. Campbell

states that his failure to oppose the underlying motion to deem the RFAs admitted was a result of his mistake and excusable neglect because from September 2025 to early 2026, his office experienced significant technological disruptions, including a mass email chain incident and subsequent system compromises that impacted email functionality and calendaring systems. (Id., ¶7.) He states that his office reinstalled email and practice management systems, as well as re-calendared matters, and he inadvertently failed to properly calendar the deadline to the motion to deem the RFAs admitted. (Id.) He contends that Plaintiff has not suffered any prejudice as a result of the timing of Defendant's responses since Plaintiff has been in possession of the verified responses since March 17, 2026 and again when they were re-served after the hearing. (Id., ¶8.)

In opposition, Plaintiff argues

that Mr. Campbell's declaration lacks credibility and is inconsistent because he attended the April 24, 2026 hearing but failed to present documents regarding service of the RFAs, he has disregarded Court orders and/or refused to comply with discovery rules and has been sanctioned monetarily in the past.

The Court does not find

Plaintiff's arguments persuasive. At the

April 24, 2026 hearing, Mr. Campbell presented oral arguments similar to those made in his declaration but, as he did not file a written opposition and Mr. Campbell did not prepare evidentiary proof at that time to show whether he had in fact served RFA responses, the Court granted the underlying RFA motion but allowed Defendant to file a motion for reconsideration in the event he had documentary proof that the RFAs had indeed been served prior to the hearing.

Based on the Court's review of

Mr. Campbell's email sent on March 17, 2026, Defendant has now provided evidence showing that Defendant served RFA responses prior to the April 24,

2026 hearing. Thus, Defendant has presented new or different facts and circumstances, showing that responses were provided prior to the hearing. (See C.C.P. § 2033.280(c) ["The court shall make this order [deeming admitted the truth of any matters specific in the requests], unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220."].) A review of the RFA responses show that they were verified, code-compliant responses admitting or denying the matters.

Plaintiff's counsel Eugene E. Matthews states that he conducted an email search for the RFA responses, but did not find the RFA email. (Matthews Decl., ¶¶5-6.) Although Mr. Matthews did not find the March 17, 2026 email in his account, Mr. Campbell's exhibits show that he did send an email on March 17, 2026 with an RFA attachment without any bounce-back error. Though inconvenient to Plaintiff, the Court recognizes that there may be technological issues concerning emails—much in the same way that posted mail may have gotten lost during physical delivery. In light of this unique circumstance, the Court grants this motion for reconsideration.

As the motion is granted pursuant to C.C.P. § 1008, the Court need not address the alternative motion pursuant to C.C.P. § 473(b)'s mandatory provision based on attorney fault.

B.
Sanctions

Plaintiff requests that if the motion is granted based on attorney fault under section 473(b), then the Court impose: (1) \$3,375 in sanctions for attorney's fees incurred for opposing this motion (4.5 hours at \$750/hour), and (2) \$1,500 in sanctions pursuant to the Court's October 3, 2025 order and \$2,120 in sanctions pursuant to the Court's April 24, 2026 order against Defendant and his counsel of record.

The Court declines to re-impose the \$1,500 and/or \$2,120 sanctions amounts. With respect to the \$3,375

in sanctions, section 473(c)(1) states: "Whenever the court grants relief from a default, default judgment, or dismissal based on any of the provisions of this section, the court may" impose a penalty upon the offending attorney or party, direct the offending attorney to pay an amount to the State Bar Client Security Fund, or grant other relief as is appropriate. As noted above, the motion is granted based on section 1008. As such, the Court need not apply section 473(b)'s provision in ruling on this motion.

C. Reconsideration

For these reasons, the motion for reconsideration is granted. The Court now reconsiders its April 24, 2026 order and denies Plaintiff's Motion for Order Deeming RFA, set two, Admitted against Defendant, as Defendant has shown that RFA responses were electronically served on Plaintiff on March 17, 2026 prior to the April 24, 2026 hearing. The remainder of the Court's April 24, 2026 minute order shall remain, including the sanctions award as Defendant did not request reconsideration of that portion of the order.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendant Gary English's Motion for Reconsideration came on regularly for hearing on September 11, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE MOTION FOR
RECONSIDERATION OF THE APRIL 24, 2026 ORDER IS GRANTED.

ON APRIL 24,

2026, THE COURT GRANTED PLAINTIFF'S UNOPPOSED MOTION FOR ORDER DEEMING REQUESTS FOR ADMISSIONS, SET TWO, ADMITTED AGAINST DEFENDANT GARY ENGLISH. THE COURT NOW RECONSIDERS THAT PRIOR ORDER AND DENIES THE MOTION FOR ORDER DEEMING REQUESTS FOR ADMISSIONS, SET TWO, ADMITTED, AS DEFENDANT HAS NOW SHOWN THAT DISCOVERY RESPONSES WERE ELECTRONICALLY SERVED ON PLAINTIFF ON MARCH 17, 2026, PRIOR TO THE APRIL 24, 2026 HEARING. THE REMAINDER OF THE COURT'S APRIL 24, 2026 MINUTE ORDER SHALL REMAIN.

A FINAL STATUS CONFERENCE IS SET FOR JANUARY 21, 2027 AT 10:00 A.M. IN PERSON WITH TRIAL COUNSEL.

OSC RE FILING TRIAL BINDERS JANUARY 14, 2027 (NON-APPEARANCE)

COURT ISSUES A TRIAL PREPARATION ORDER, ALL PARTIES ARE ORDERED TO COMPLY WITH THE TRIAL ORDER INCORPORATED IN THE COURT'S DOCKET.

JURY TRIAL IS SET FOR JANUARY 25, 2027 AT 10:30 A.M.

DEFENDANT TO PROVIDE NOTICE.

IT IS SO ORDERED.